

ASCII MASTER FLOW – PANEL 1/12: CONSTITUTIONAL MAP

PART XII, CHAPTER III

294-295 succession -> 296 escheat/lapse/bona vacantia -> 297 maritime value
-> 298 trade/property/contract capacity -> 299 mandatory contract form
-> 300 suits/proceedings

ADJACENT ARTICLE 300A -> no deprivation of property except by authority of law.

MASTER LIMIT: Public power creates special form, not blanket immunity.

ASCII MASTER FLOW — PANEL 2/12: COMMENCEMENT SUCCESSION

ARTICLE 294

Dominion property/assets -> Union | Governor's Province -> corresponding State
rights/liabilities/obligations follow, subject to constitutional adjustments.

ARTICLE 295

former Indian State property/right/liability -> Union where Union purpose/list connection
applies
-> otherwise corresponding State, subject to agreement.

LATER REORGANISATION -> governing statute/transfer instrument, not an invented formula.

ASCII MASTER FLOW — PANEL 3/12: OWNERLESS AND MARITIME PROPERTY

ARTICLE 296

escheat = no lawful heir | lapse = failed/terminated title | bona vacantia = ownerless property in a State -> that State; other case -> Union
subject to the governmental-purpose possession/control proviso.

ARTICLE 297

specified ocean-bed lands, minerals and things of value + EEZ resources -> Union.

TRAP: Article 296 is not compulsory acquisition; Article 297 does not state every zone distance.

ASCII MASTER FLOW — PANEL 4/12: ARTICLE 298 CAPACITY AND ACCOUNTABILITY

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UNION + STATE EXECUTIVE POWER
trade/business + acquire/hold/dispose property + make contracts
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  v
PROVISOS preserve the competent legislature's control
  |
  v
Article 14 + statutory law + appropriation + audit + procurement discipline remain.

CAPACITY != VALID ARTICLE 299 COMMITMENT.
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ASCII MASTER FLOW – PANEL 5/12: ARTICLE 299 CONTRACT FORM

VALID GOVERNMENT CONTRACT

1. expressed to be made by President/Governor
2. executed on behalf of that constitutional head
3. executed by authorised person in authorised manner

Bhikraj Jaipuria + Mulamchand -> mandatory public-policy safeguards;
performance, ratification or estoppel cannot supply missing form.

Article 299(2) -> no personal liability of head/authorised executant;
governmental liability on a valid contract remains.

ASCII MASTER FLOW — PANEL 6/12: DEFECTIVE BARGAIN AND RESTITUTION

ARTICLE 299 DEFECT -> no enforcement as government contract

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CONTRACT ACT SECTION 70?

lawful act/delivery + non-gratuitous intention + government enjoys benefit

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restitution measured by proved benefit

B.K. Mondal -> benefit route | Mulamchand -> claimant must prove/account.

LIMIT: restitution does not validate the bargain or guarantee its stated price.

ASCII MASTER FLOW – PANEL 7/12: ARTICLE 300 AND CIVIL PROCEDURE

PROPER PARTY

Union matter -> Union of India | State matter -> name of State (CPC 79)

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v

CPC 80(1) two-month notice for covered suit

OR CPC 80(2) court leave for urgent/immediate relief

|

v

Limitation Act 15(2) excludes required notice time

|

v

CPC 82: qualifying decree/order/award must remain unsatisfied three months before execution.

PROCEDURE != SUBSTANTIVE IMMUNITY.

ASCII MASTER FLOW — PANEL 8/12: PRIVATE TORT AND IMMUNITY EVOLUTION

P & O Steam Navigation -> colonial sovereign/non-sovereign divide

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Vidyawati (1962) -> ordinary vehicle negligence; State vicariously liable

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Kasturi Lal (decided 1964) -> older police custody immunity line

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N. Nagendra Rao (1994) -> broad immunity untenable; narrow inalienable residue

TEST: duty + breach + causation + damage + course of employment + statutory defence.

VERDICT: no blanket sovereign immunity.

ASCII MASTER FLOW — PANEL 9/12: CONSTITUTIONAL COMPENSATION

Rudul Sah -> unlawful detention compensation
Nilabati Behera -> public-law Article 21 remedy distinct from private tort
D.K. Basu -> custodial safeguards + enforceable compensation
|
v
Articles 32/226 vindicate established Fundamental-Right violation

COEXISTS WITH, BUT DOES NOT UNIVERSALLY REPLACE:
civil damages | prosecution | discipline | statutory compensation.

ASCII MASTER FLOW — PANEL 10/12: ARTICLE 300A EVOLUTION AND TAXONOMY

PRE-44TH: Articles 19(1)(f) + 31 as Fundamental Rights

44TH AMENDMENT: delete/omit them -> insert Article 300A outside Part III

|
v

Bishambhar Dayal -> executive instruction alone is not authority of law

Jilubhai -> constitutional, non-Fundamental status; former adequacy rule not restored

ACQUISITION permanent | REQUISITION temporary use/possession

REGULATION controls use | DEPRIVATION determined by substantive legal effect.

ASCII MASTER FLOW – PANEL 11/12: PUBLIC PURPOSE, COMPENSATION AND OCCUPATION

K.T. Plantation

law + competence + public purpose + no colourable confiscation/illusory compensation
BUT no automatic constitutional market-value formula in every case.

Vidya Devi

unsupported executive occupation + no acquisition/compensation -> Article 300A violation
State could not use adverse possession to sanitise its own unlawful taking on those facts.

Bimal Kumar Shah

notice -> hearing -> reasons -> public purpose -> compensation/restitution
-> efficient process -> conclusion.

ASCII MASTER FLOW — PANEL 12/12: REMEDY AND ANSWER ROUTE

VALID CONTRACT BREACH -> contract/arbitration
DEFECTIVE FORM + BENEFIT -> section 70 restitution
OPERATIONAL WRONG -> private tort
FUNDAMENTAL-RIGHT VIOLATION -> constitutional compensation
PROPERTY DEPRIVATION -> Article 300A + acquisition-law remedies
ILLEGAL DECISION -> judicial review
PERSONAL OFFICIAL FAULT -> criminal/disciplinary/personal civil route

UPSC SPINE

map Article -> identify wrong -> select route -> state ingredients -> name case
-> add procedural boundary -> prevent double recovery -> qualified rule-of-law verdict.